

SENATE No. 1344

The Commonwealth of Massachusetts

PRESENTED BY:

John F. Keenan

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to transparency in employee benefits reporting in private construction.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>John F. Keenan</i>	<i>Norfolk and Plymouth</i>	
<i>Jason M. Lewis</i>	<i>Fifth Middlesex</i>	<i>1/28/2025</i>
<i>Patricia D. Jehlen</i>	<i>Second Middlesex</i>	<i>2/19/2025</i>
<i>Sal N. DiDomenico</i>	<i>Middlesex and Suffolk</i>	<i>2/20/2025</i>
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	<i>2/27/2025</i>
<i>Michael D. Brady</i>	<i>Second Plymouth and Norfolk</i>	<i>2/27/2025</i>
<i>Thomas M. Stanley</i>	<i>9th Middlesex</i>	<i>3/26/2025</i>
<i>Rebecca L. Rausch</i>	<i>Norfolk, Worcester and Middlesex</i>	<i>4/5/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>7/10/2025</i>

SENATE No. 1344

By Mr. Keenan, a petition (accompanied by bill, Senate, No. 1344) of John F. Keenan, Jason M. Lewis, Patricia D. Jehlen, Sal N. DiDomenico and other members of the Senate for legislation relative to transparency in employee benefits reporting in private construction. Labor and Workforce Development.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to transparency in employee benefits reporting in private construction.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 151A of the General Laws, as appearing in the 2022 Official
2 Edition, is hereby amended by adding the following new section:-

3 Section 75. For the purpose of this section, the term “development” shall mean a private
4 residential dwelling in excess of 10 units or a retail, commercial or industrial development in
5 excess of 5,000 square feet.

6 For any private development that is in excess of \$750,000, each employer shall post in a
7 conspicuous location at the job site a certificate of compliance issued by the department showing
8 that it is registered with the department and current in its obligations relating to contributions,
9 payments in lieu of contributions, and the employer medical assistance contribution established
10 in Section 189 of Chapter 149.

11 SECTION 2. Chapter 152 is hereby amended by adding the following new section:-

Section 87. For the purpose of this section, the term “development” shall mean a private residential dwelling in excess of 10 units or a retail, commercial or industrial development in excess of 5,000 square feet.

For any private development that is in excess of \$750,000, each employer shall post in a conspicuous location at the job site a notice providing the names and contact information for its workers’ compensation carrier and agent and that it is current in its obligations relating to proof of coverage verification.

SECTION 3. Chapter 149 is hereby amended by adding the following new section:-

Section 27B1/2. For the purpose of this section, the term “development” shall mean a private residential dwelling in excess of 10 units or a retail, commercial or industrial development in excess of 5,000 square feet.

For any private development that is in excess of \$750,000, each employer shall ensure that each person performing services on their behalf on the job site completes the appropriate entries in a sign in-out log. The sign in-out log shall include the location of the project, current date, printed name, signature, Massachusetts trade license number, where applicable, and the time of each entry or exit. Every contractor or subcontractor shall furnish, upon request, a true and accurate record of all persons performing services on a job site for inspection by the Attorney General or her designee.